

HOUSE No. 916

The Commonwealth of Massachusetts

PRESENTED BY:

Michelle L. Ciccolo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to reduce single use plastics in the environment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michelle L. Ciccolo</i>	<i>15th Middlesex</i>	<i>1/17/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/12/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/13/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>3/4/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>4/14/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>5/12/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>5/15/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>5/22/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>5/22/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/7/2025</i>

HOUSE No. 916

By Representative Ciccolo of Lexington, a petition (accompanied by bill, House, No. 916) of Michelle L. Ciccolo and others for legislation to reduce single-use plastics from the environment. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to reduce single use plastics in the environment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Title II of the General Laws is hereby amended by inserting after chapter
2 210 the following chapter:-

3 CHAPTER 21P: PLASTIC BAG REDUCTION

4 Section 1. As used in this chapter, the following words shall have the following meanings
5 unless the context clearly requires otherwise:

6 “Carryout bag”, a bag that is provided to a customer to carry items purchased from or
7 serviced by a retail establishment. A carryout bag does not include the following: (i) a bag
8 provided by a pharmacy to a customer purchasing prescription medication; (ii) a bag used to
9 protect items from damaging or contaminating other purchased items placed in a recycled paper
10 bag or a reusable grocery bag; (iii) a bag provided to contain an unwrapped food item; (iv) a bag
11 to protect articles of clothing on a hanger; (v) a bag to prevent frozen food items, including ice
12 cream, from thawing; (vi) a bag to protect small items from loss.

“Postconsumer recycled material”, a material that would otherwise be destined for solid waste disposal, having completed its intended end use and product life cycle. Postconsumer recycled material does not include materials and byproducts generated from, and commonly reused within, an original manufacturing and fabrication process.

“Recycled paper bag”, a paper bag that is (i) 100 per cent recyclable; (ii) contains a minimum of 40 per cent postconsumer recycled materials, provided, however, that an 8 pound or smaller recycled paper bag shall contain a minimum of 20 per cent postconsumer recycled material; and (iii) displays the words "Recyclable" and "made from 40% post-consumer recycled content" or other applicable amount in a visible manner on the outside of the bag.

“Reusable grocery bag”, a bag that is not a plastic film bag, has handles that are stitched and not heat fused, and that is made of machine-washable cloth, hemp, or other woven or non-woven fibers, fabrics, or materials that are at least 45 grams per square meter, designed and manufactured specifically for multiple uses.

“Single-use carryout bag”, a carryout bag made of plastic, paper, or other material that is provided by a Retail establishment to a customer at the point of sale and that is not a recycled paper bag or a reusable grocery bag.

“Retail establishment”, a store or premises in which a person is engaged in the retail business of selling or providing merchandise, goods, groceries, prepared take-out food and beverages for consumption off-premises or the servicing of an item, directly to customers at such store or premises, including, but not limited to, grocery stores, department stores, pharmacies, convenience stores, restaurants, coffee shops and seasonal and temporary businesses, including farmers markets and public markets; provided, however, that a “retail establishment” shall also

include a food truck or other motor vehicle, mobile canteen, trailer, market pushcart or moveable roadside stand used by a person from which to engage in such business directly with customers and business establishments without a storefront, including, but not limited to, a business delivering prepared foods or other food items, web-based or catalog business or delivery services used by a retail establishment; provided further, that a “retail establishment” shall include a non-profit organization, charity or religious institution that has a retail establishment and holds itself out to the public as engaging in retail activities that are characteristic of similar type retail businesses, whether or not for profit when engaging in such activity; provided further that a “retail establishment” shall include K-12 food service operations or institutional cafeterias, including those operated by or on behalf of any government entity.

Section 2. (a) Eighteen months after the enactment of this law, a Retail establishment shall not sell or otherwise distribute to a customer a carryout out bag that is not: a (i) reusable grocery bag, or (ii) recycled paper bag.

(b) For up to 180 days from the date of enactment, a Retail establishment may make available a single-use carryout bag, reusable grocery bag, or recycled paper bag to a customer.

(c) From 180 days to eighteen months after the enactment of this law, if a Retail establishment makes available a single-use carryout bag, recycled paper bag, or reusable grocery bag to a customer, the price of a single-use carryout bag, recycled paper bag, or reusable grocery bag shall be not less than \$0.10 each.

(d) From eighteen months after the enactment of this law, if a Retail establishment makes available a recycled paper bag or a reusable grocery bag to a customer, the price of a recycled paper bag or a reusable grocery bag shall be not less than \$0.10 each.

(e) All moneys collected pursuant to this section shall be retained by the Retail establishment.

(f) Subsections (a)-(d) shall not apply to any type of bag used by a Retail establishment or provided by a retail establishment to a customer for: (i) providing or distributing prepared foods, groceries or articles of clothing at no cost or at a substantially reduced cost by a nonprofit organization, charity or religious institution, or (ii) any item that requires the use of a certain type of bag under federal or state law.

(g) The department of environmental protection shall promulgate regulations with regard to the enforcement of this chapter. The department of environmental protection shall establish a small business exemption process by which a Retail establishment may elect to be exempt from the provisions of subsections (b) through (d) of this section. A Retail establishment electing for said exemption must upon request submit to the department of environmental protection a self-audit attesting that they meet the following criteria:

1.the owner of the Retail establishment has 3 or fewer store locations under the same ownership; and

2.each Retail establishment has less than 4,000 square feet of retail selling space; and

3.each Retail establishment has 15 or fewer employees employed at the store location; and either

4.the Retail establishment is not a food establishment as defined by 105 CMR 590.001(C); or

77 5.the Retail establishment provided to consumers at the point of sale less than 15,000
78 carry-out bags or checkout bags in total during the previous calendar year.

79 (h) Nothing in this section shall prohibit a customer from bringing a personal bag, made
80 or comprised of any material, to a retail establishment to carry out items purchased from or
81 serviced by the retail establishment.

82 (i) A retail establishment shall not be prohibited from selling or offering for sale to
83 customers: (i) any package containing several bags, including, but not limited to, food bags,
84 sandwich bags, yard waste bags, garbage bags or municipal pay-as-you-throw program trash
85 bags; (ii) any product, merchandise or good with a protective bag, a bag to hold related
86 accessories, parts or instruction manuals or a bag used as product packaging that the retail
87 establishment received with such item or product from the manufacturer, distributor or vendor;
88 or (iii) any bag that is not a retail type carryout bag that is sold or offered for sale as a product or
89 merchandise, including, but not limited to, sports bags, handbags, equipment bags, tent bags or
90 other bags specifically designed to protect or contain a particular item.

91 (j) Notwithstanding subsections (c)-(d) and to the extent permitted under federal and state
92 law, a retail establishment that makes available for purchase a recycled paper bag at the point of
93 sale shall not charge a fee for the bag to a customer using an electronic benefit transfer card as
94 payment.

95 Section 3. This chapter shall preempt any limitation by any political subdivision of the
96 commonwealth regarding the use, sale or distribution of carryout bags by a Retail establishment
97 to the extent that it is regulated or covered by this chapter. Any part of a municipal ordinance,

bylaw or regulation, including a regulation of a board of health, that is inconsistent with this chapter shall be null and void 180 days after the enactment of this law.

Section 4. (a) Each city and town shall enforce this chapter through its enforcing authority as determined under subsection (c).

(b) A retail establishment that violates this chapter shall be subject to a warning for the first violation, a civil penalty of up to \$500 for the second violation and a civil penalty of up to \$1000 for a third or subsequent violation. Each day a retail establishment is in violation of this chapter shall be considered a separate violation. Each city and town shall dispose of a civil violation under this subsection by the non-criminal method of disposition procedures contained in section 21D of chapter 40 without an enabling ordinance or bylaw.

(c) Each city and town shall designate the municipal board, department or official responsible for the local enforcement of this chapter and for the collection of money resulting from civil penalties assessed for violations of this chapter. A city or town shall retain any civil penalties collected for such violations.

Section 5. The department of environmental protection may through regulation: (i) increase or adjust the postconsumer recycled material percentage in a recycled paper bag; (ii) increase or adjust the fee established under subsections (c)-(d) of section 2; (iii) allow a retail establishment to use other non-plastic type carryout bags that are recyclable or compostable, provided however that such regulations shall not be implemented prior to the universal availability of a safe disposal route for compostable bags and, provided further, that the department shall seek public comment on said proposed regulations; and (iv) promulgate standards regulating bags authorized under subsection (b) of section 2.

The department of environmental protection shall, when adopting or amending any standard for an allowed recycled or reusable bag under this chapter, consult with the department of public health on issues relating to food safety and the materials used to produce the bags.

The department of environmental protection shall conduct an evaluation of the implementation of this act every three years and shall submit to the clerks of the senate and the house of representatives a report including legislative recommendations not later than December 31.

Section 6. Nothing in this chapter shall prohibit or limit the department of environmental protection's authority to enforce this chapter.

Section 7. Notwithstanding any general or special law to the contrary, the department of transitional assistance shall, if necessary to implement subsection (j) of section 2 of chapter 21P of the General Laws, use reasonable efforts to seek a waiver from the federal Food and Nutrition Service to implement said subsection (j) of said section 2 of said chapter 21P.

SECTION 2. Reduce Polystyrene in the Environment

The General Laws are hereby amended by inserting after chapter 21P the following chapter:

Chapter 21Q.

Section 1. Definitions. As used in this chapter, the following words shall have the following meanings unless the context clearly requires otherwise:

“Disposable Food Service Ware” shall mean single-use or disposable products for heating, storing, packaging, serving, consuming or transporting prepared or ready-to-consume

141 food or beverages including, but not limited to, bowls, plates, trays, cartons, cups, lids, hinged or
142 lidded containers, spoons, forks and knives. This includes any containers used by food
143 establishments to heat, cook or store food or beverages prior to serving, regardless of whether
144 such containers are used to serve such food or beverages. Disposable Food Service Ware also
145 includes any such implements sold by Retail Establishments to consumers for personal use.

146 “Foam Polystyrene” shall mean polystyrene in the form of a foam or expanded material,
147 processed by any number of techniques including, but not limited to, fusion of polymer spheres
148 (expandable bead polystyrene), injection molding, foam molding, and extrusion-blow molding
149 (extruded foam polystyrene).

150 “Food Establishment” shall mean any operation that serves, vends or otherwise provides
151 food or other products to third-parties for consumption and/or use on or off the premises,
152 whether or not a fee is charged, but not including the service of food within a home or other
153 private setting. Any facility requiring a food permit in accordance with the Massachusetts State
154 Food Code, 105 CMR 590.000, et seq. and/or regulations of the Board of Health shall be
155 considered a “food establishment” for purposes of this chapter.

156 “Health Agent” shall mean the Health Agent for the city or town of the facility, or his/her
157 designee.

158 “Packing Material” shall mean material used to hold, cushion, or protect items packed in
159 a container for shipping transport or storage.

160 “Prepared Food” shall mean food or beverages, which are serviced, packaged, cooked,
161 chopped, sliced, mixed, brewed, frozen, squeezed, or otherwise prepared (collectively

“prepared”) for individual customers or consumers. Prepared Food does not include raw eggs or raw, butchered meats, fish, seafood, and/or poultry.

“Polystyrene” shall mean a synthetic polymer produced by polymerization of styrene monomer. Polystyrene includes both “Foam Polystyrene” and “Solid Polystyrene” as defined in this chapter. The International Resin Identification Code assigned to polystyrene materials is “6”. Polystyrene items may be identified by a "6" or "PS," either alone or in combination with other letters. The regulations and prohibitions relating to polystyrene in this law are intended to apply regardless of the presence or absence of an International Resin Identification Code or other identifying marks on the item.

“Retail Establishment” shall mean a store or premises engaged in the retail business of selling or providing merchandise, goods, groceries, prepared take-out food and beverages for consumption off-premises or the serving of an item directly to customers at such store or premises, including, but not limited to, grocery stores, department stores, pharmacies, convenience stores, restaurants, coffee shops and seasonal and temporary businesses, including farmers markets and public markets; provided, however, that a “retail establishment” shall also include a food truck or other motor vehicle, mobile canteen, trailer, market pushcart or moveable roadside stand used by a person from which to engage in such business directly with customers and business establishments without a storefront, including, but not limited to, a business delivering prepared foods or other food items, web-based or catalog business or delivery services used by a retail establishment; provided further, that a “retail establishment” shall include a non-profit organization, charity or religious institution that has a retail establishment and holds itself out to the public as engaging in retail activities that are characteristic of similar type commercial retail businesses, whether or not for profit when engaging in such activity.

“Solid Polystyrene” shall mean polystyrene, including clear (oriented) polystyrene, produced in a rigid form with minimal incorporation of air or other gas. Solid polystyrene is also referred to as ‘rigid polystyrene’.

Section 2. Regulated Conduct

a. One year after passage of this Act, no Food Establishment in the Commonwealth of Massachusetts may use, sell, offer for sale, or otherwise distribute disposable food service ware made from foam polystyrene or solid polystyrene.

b. One year after passage of this Act, no Retail Establishment in the Commonwealth of Massachusetts may sell, offer for sale, or otherwise distribute: 1. disposable food service ware made from foam polystyrene or solid polystyrene 2. meat trays, fish trays, seafood trays, vegetable trays, or egg cartons made in whole or in any part with foam polystyrene or solid polystyrene 3. distributing packing materials, including packing peanuts, other loose fill packaging and shipping boxes made in whole or in any part with foam polystyrene. 4. coolers, ice chests, or similar containers; pool or beach toys; and dock floats, mooring buoys, or anchor or navigation markers, which are made in whole or in any part with foam polystyrene that is not wholly encapsulated within a more durable material.

c. For the purposes of Section 2(b)(3), ‘distributing packing material’ does not include: 1. Re-using packing materials for shipping, transport, or storage within the same distribution system, where the packing materials are not sent to a customer or end user. 2. Receiving shipments within the Commonwealth that include polystyrene foam used as a packing material, provided that the goods were not packaged or repackaged within the Commonwealth of Massachusetts.

207 Section 3. Exemption

208 a. Nothing in this chapter shall prohibit individuals from using disposable food service
209 ware or other items made of polystyrene purchased outside the Commonwealth of Massachusetts
210 for personal use. b) Prepared food packaged outside the Commonwealth of Massachusetts is
211 exempt from the provisions of this chapter, provided that it is sold or otherwise provided to the
212 consumer in the same disposable food service ware in which it was originally packaged, and that
213 the prepared food has not been altered or repackaged. c) The Commonwealth of Massachusetts
214 Department of Environmental Protection or the Board of Health of the city or town in which the
215 food or retail establishment is located may exempt a food establishment or retail establishment
216 from any provision of this chapter for a period of up to six months upon written application by
217 the owner or operator of that establishment. No exemption will be granted unless the Department
218 of Environmental Protection or the Board of Health finds that (1) strict enforcement of the
219 provision for which the exemption is sought would cause undue hardship; or (2) the food
220 establishment or retail establishment requires additional time in order to draw down an existing
221 inventory of a specific item regulated by this chapter. For purposes of this chapter, “undue
222 hardship” shall mean a situation unique to a food establishment or retail establishment in which
223 there are no reasonable alternatives to the use of materials prohibited by this chapter, and that
224 compliance with this chapter would create significant economic hardship for the Establishment

225 Section 4. Enforcement

226 Health Agents of the cities and towns of the Commonwealth of Massachusetts shall also
227 have the authority to enforce this chapter. This chapter may be enforced through any lawful
228 means in law or in equity, including but not limited to, noncriminal disposition pursuant to G.L.

c. 40 § 21D. The town or city may enforce this chapter or enjoin violations thereof through any lawful process or combination of processes, and the election of one remedy by the town or city shall not preclude enforcement through any other lawful means. Violations of this chapter are punishable by a fine of up to \$500 per violation. Each successive day of noncompliance will count as a separate violation.

If non-criminal disposition is elected, then any Food or Retail Establishment that violates any provision of this chapter shall be subject to the following penalties: (i) first offense: written warning;(ii) second offense: \$250 penalty, and (iii) third and each subsequent offense: \$500 penalty.

Section 5. Regulations

The Board of Health may adopt and amend rules and regulations to effectuate the purposes of this chapter.

Section 6. Interaction with Other Laws

In the case of a conflict between the requirements of this chapter and any other federal, state or local law concerning the materials regulated herein, the more stringent requirements shall apply.

Section 7. Severability

If any provision of this chapter is declared invalid or unenforceable the other provisions shall not be affected thereby.

SECTION 3. Reduce Plastic Straws in the Environment

249 The General Laws are hereby amended by inserting after chapter 21Q the following
250 chapter:

251 Chapter 21R.

252 Section 1. Definitions. As used in this chapter, the following words shall have the
253 following meanings unless the context clearly requires otherwise:

254 “Disability” shall mean a physical, intellectual, or sensory impairment that substantially
255 limits one or more major life activities.

256 “Disposable plastic straw, stirrer, or splash stick” shall mean a drinking straw, stirrer, or
257 splash stick made predominantly from synthetic polymers and that is not a reusable straw, stirrer,
258 or splash stick. A disposable plastic straw, stirrer, or splash stick shall also include items made in
259 whole or in part from synthetic polymers that are otherwise classified as ‘compostable’,
260 ‘biodegradable’, ‘oxodegradable’, or ‘marine degradable’.

261 “Food Establishment” shall mean any operation that serves, vends or otherwise provides
262 food or other products to third-parties for consumption and/or use on or off the premises,
263 whether or not a fee is charged, but not including the service of food within a home or other
264 private setting. Any facility requiring a food permit in accordance with the Massachusetts State
265 Food Code, 105 CMR 590.000, et seq. and/or regulations of the Board of Health shall be
266 considered a “food establishment” for purposes of this bylaw.

267 “Health Agent” shall mean the Health Agent for the city or town of the facility or his/her
268 designee.

“Medical Condition” shall mean any illness, disease, or injury that requires medical treatment.

“Reusable straw, stirrer, or splash stick” shall mean a drinking straw, stirrer, or splash stick that is manufactured from durable materials, and is designed to be adequately and repeatedly cleaned and sanitized for reuse.

“Retail Establishment” shall mean a store or premises engaged in the retail business of selling or providing merchandise, goods, groceries, prepared take-out food and beverages for consumption off-premises or the serving of an item, directly to customers at such store or premises, including, but not limited to, grocery stores, department stores, clothing stores, pharmacies, convenience stores, restaurants, coffee shops and seasonal and temporary businesses, including farmers markets and public markets; provided, however, that a “retail establishment” shall also include a food truck or other motor vehicle, mobile canteen, trailer, market pushcart or moveable roadside stand used by a person from which to engage in such business directly with customers and business establishments without a storefront, including, but not limited to, a business delivering prepared foods or other food items, web-based or catalog business or delivery services used by a retail establishment; provided further, that a “retail establishment” shall include a non-profit organization, charity or religious institution that has a retail establishment and holds itself out to the public as engaging in retail activities that are characteristic of similar type commercial retail businesses, whether or not for profit when engaging in such activity.

Section 2. Regulated Conduct

a. One year after passage of this Act, no food establishment in the Commonwealth of Massachusetts may provide a disposable plastic straw, stirrer, or splash stick, as such term is defined in this chapter, to a customer.

b. One year after passage of this Act, no food establishment in the Commonwealth of Massachusetts may provide a disposable straw, stirrer, or splash stick that is not a reusable straw, stirrer, or splash stick to a customer, except upon that customer's specific request for such items or if the item is selected by a customer from a self-service dispenser.

c. One year after passage of this Act, retail establishments in the Commonwealth of Massachusetts are prohibited from selling or distributing disposable plastic straws, stirrers, or splash sticks to customers unless equivalent non-plastic or reusable straws, stirrers, or splash sticks are available for sale and are clearly labeled such that any customer can easily distinguish among the disposable plastic, disposable non-plastic, and reusable items.

Section 3. Exemptions

a. Nothing in this bylaw shall prohibit individuals from bringing and using their own personal straws, stirrers, or splash sticks of any type for personal use in a food establishment. b. Food establishments may provide a disposable plastic straw, stirrer, or splash stick, upon request, to a person in need due to a disability or medical condition. c. The Department of Environmental Protections or the Board of Health or health agent of the city or town in which the establishment is located may exempt a food establishment or retail establishment from any provision of this chapter for a period of up to six months upon written application by the owner or operator of that establishment. No exemption will be granted unless the Department or the Board of Health or

health agent finds that the establishment requires additional time in order to draw down an existing inventory of a specific item regulated by this chapter.

Section 4. Enforcement

Health Agents shall have the authority to enforce this bylaw. This bylaw may be enforced through any lawful means in law or in equity, including but not limited to, noncriminal disposition pursuant to G.L. c. 40 § 21D and Article VI of the General Bylaws. The city or town may enforce this chapter or enjoin violations thereof through any lawful process or combination of processes, and the election of one remedy by the city or town shall not preclude enforcement through any other lawful means.

Violations of this bylaw are punishable by a fine of up to \$300 per violation. Each successive day of noncompliance will count as a separate violation.

If non-criminal disposition is elected, then any Food Establishment or Retail Establishment that violates any provision of this bylaw shall be subject to the following penalties: (i) first offense: written warning, (ii) second offense: \$50 penalty, and (iii) third and each subsequent offense: \$300 penalty.

Section 5. Regulations

The Board of Health may adopt and amend rules and regulations to effectuate the purposes of this chapter.

Section 6. Interaction with Other Laws

In the case of a conflict between the requirements of this chapter and any other federal, state or local law concerning the materials regulated herein, the more stringent requirements shall apply.

Section 7. Severability

If any provision of this chapter is declared invalid or unenforceable the other provisions shall not be affected thereby.

SECTION 4. To Prevent the Release of Helium Balloons into the Environment

Chapter 131 of the General Laws, as appearing in the 2016 official edition, is hereby amended by adding the following new section:

Section 119. The sale, distribution and release of any type of balloon, including, but not limited to, plastic or latex, filled with any type of lighter than air gas, both for public or private use, is hereby prohibited. Whoever violates any provision of this section shall be punished by a fine of not more than one hundred dollars.

The provisions of this section shall not apply to (i) balloons released by or on behalf of any agency of the commonwealth or the United States for scientific or meteorological purposes, or (ii) hot air balloons that are recovered after launch.

SECTION 5. To Prevent the Release of Nips into the Environment

One year after passage of this Act, the sale of alcoholic beverages in containers less than or equal to 100 milliliters is prohibited within the Commonwealth of Massachusetts.

SECTION 6. To Prevent the Release of Wipes Containing Plastic into the Environment

Section 1. For purposes of this section, the following definition shall apply:

“Plastic Wipe”, a nonwoven disposable product manufactured and sold in this state or brought into the state for sale that is constructed from plastic resin (including, but not limited to, polyester and polypropylene) nonwoven sheets, including moist toilet tissue or cloth, that is designed, marketed to or commonly used by the general public for personal hygiene or cleaning purposes, including, but not limited to, diaper wipes, toilet wipes, household cleaning wipes, personal care wipes and facial wipes.

Section 2. No retailer shall sell or distribute plastic wet wipes other than those used for medical applications.

Section 3. This law shall not affect prescription products.

SECTION 7. To Prevent the Release of Hotel Toiletry Bottles into the Environment

Section 1. (a) For purposes of this section, the following definitions shall apply:

(1) “Hosted rental” means a house, apartment, or other livable space where the person providing sleeping accommodations is a permanent resident who lives on the premises.

(2) “Lodging establishment” means an establishment that contains one or more sleeping room accommodations that are rented or otherwise provided to the public, including, but not limited to, a hotel, motel, resort, bed and breakfast inn, or vacation rental. “Lodging establishment” does not include a hospital, nursing home, residential retirement community, prison, jail, homeless shelter, boarding school, worker housing, long-term rental, or hosted rental.

(3) “Personal care product” means a product intended to be applied to or used on the human body in the shower, bath, or any part thereof and shall include only shampoo, hair conditioner, and bath soap.

(4) “Plastic” means any synthetic material made from organic polymers, such as polyethylene, polyvinyl chloride (PVC), or nylon, that can be molded into shape while soft and then set into a rigid or slightly elastic form. “Plastic” includes all materials identified with resin codes 1 to 7, inclusive.

(5) “Small plastic bottle” means a plastic bottle or container with less than a 6-ounce capacity that is intended to be nonreusable by the end user.

(b) Commencing one year from the passage of this act for lodging establishments with more than 50 rooms, and two years from the passage of this act for lodging establishments with 50 rooms or less, a lodging establishment shall not provide a small plastic bottle containing a personal care product to a person staying in a sleeping room accommodation, in any space within the sleeping room accommodation, or within bathrooms shared by the public or guests.

(c) A lodging establishment is encouraged to use bulk dispensers of personal care products to reduce plastic waste and lower operating costs, mindful of the health and safety of a person.

(d) A lodging establishment may provide personal care products in small plastic bottles to a person at no cost, upon request, at a place other than a sleeping room accommodation, a space within the sleeping room accommodation, or within bathrooms shared by the public or guests.

(e) A local agency with authority to inspect sleeping accommodations in a lodging establishment may issue a citation for a violation of subdivision (b). Upon a first violation, the local Board of Health shall issue a written warning, which shall recite the violation and advise that subsequent violations may result in citations. Upon a second or subsequent violation, the local agency may impose a penalty of five hundred dollars (\$500) for each day the lodging establishment is in violation, but not to exceed two thousand dollars (\$2,000) annually.

(f) A lodging establishment in violation of subdivision (b) is liable for a civil penalty of five hundred dollars (\$500) for the first violation and two thousand dollars (\$2,000) for a second or subsequent violation.

(g) (1) On and after one year from the passage of this act, a city, county, or city and county shall not pass or enforce an ordinance, resolution, regulation, or rule relating to personal care products in plastic bottles provided at lodging establishments, except as provided in paragraph (2).

Section 2. A city, county, or city and county that, before the passage of this act, passed an ordinance, resolution, regulation, or rule relating to personal care products in plastic bottles provided at lodging establishments may enforce that ordinance, resolution, regulation, or rule, if it is at least as stringent as, and not in conflict with, this section.

SECTION 8. To Prevent the Release of Plastic Water Bottles Into the Environment

Section 1. (a) For purposes of this section, the following definitions shall apply:

"Single-serve plastic container" means a container with a volume of 1 liter or less made in whole or in part of plastic resin codes 1 through 6 (excluding the label or cap).

411 "Bottled Water" means non-sparkling, unflavored drinking water.

412 Section 2. Restrictions

413 No retailer shall sell or distribute any bottled water in a single-serve plastic container
414 other than nutritive drinks, tea, coffee, or unflavored carbonated water.

415 Section 3. Exclusions

416 Sales or distribution of drinking water in plastic bottles occurring subsequent to a
417 declaration by a duly authorized Town, state or Federal official of an emergency affecting the
418 availability and/or quality of drinking water to residents of the Town shall be exempt from this
419 bylaw until seven days after the declaration has ended.

420 Section 4. Effective Date

421 The provisions of this law shall take effect one year after passage of this Act.

422 SECTION 9. To Prevent the Release of Black Plastic into the Environment

423 The General Laws are hereby amended by inserting after chapter 21R the following
424 chapter:

425 Chapter 21S.

426 Section 1. Definitions. As used in this chapter, the following words shall have the
427 following meanings unless the context clearly requires otherwise:

428 "Disposable Food Service Ware" shall mean single-use or disposable products for
429 heating, storing, packaging, serving, consuming, or transporting prepared or ready-to-consume

430 food or beverages including, but not limited to, bowls, plates, trays, cartons, cups, lids, hinged or
431 lidded containers, spoons, forks and knives. This includes any containers used by food
432 establishments to heat, cook, or store food or beverages prior to serving, regardless of whether
433 such containers are used to serve such food or beverages. Disposable Food Service Ware also
434 includes any such implements sold by Retail Establishments to consumers for personal use.

435 “Black Plastic” shall mean any plastic with any plastic resin codes #1-#7.

436 “Food Establishment” shall mean any operation that serves, vends or otherwise provides
437 food or other products to third-parties for consumption and/or use on or off the premises,
438 whether or not a fee is charged, but not including the service of food within a home or other
439 private setting. Any facility requiring a food permit in accordance with the Massachusetts State
440 Food Code, 105 CMR 590.000, et seq. and/or regulations of the Board of Health shall be
441 considered a “food establishment” for purposes of this bylaw.

442 “Health Agent” shall mean the Health Agent for the city or town of the facility or his/her
443 designee.

444 “Prepared Food” shall mean food or beverages, which are serviced, packaged, cooked,
445 chopped, sliced, mixed, brewed, frozen, squeezed, or otherwise prepared (collectively
446 “prepared”) for individual customers or consumers. Prepared Food does not include raw eggs or
447 raw, butchered meats, fish, seafood, and/or poultry.

448 “Retail Establishment” shall mean a store or premises engaged in the retail business of
449 selling or providing merchandise, goods, groceries, prepared take-out food and beverages for
450 consumption off-premises or the serving of an item directly to customers at such store or
451 premises, including, but not limited to, grocery stores, department stores, pharmacies,

convenience stores, restaurants, coffee shops and seasonal and temporary businesses, including farmers markets and public markets; provided, however, that a “retail establishment” shall also include a food truck or other motor vehicle, mobile canteen, trailer, market pushcart or moveable roadside stand used by a person from which to engage in such business directly with customers and business establishments without a storefront, including, but not limited to, a business delivering prepared foods or other food items, web-based or catalog business or delivery services used by a retail establishment; provided further, that a “retail establishment” shall include a non-profit organization, charity or religious institution that has a retail establishment and holds itself out to the public as engaging in retail activities that are characteristic of similar type commercial retail businesses, whether or not for profit when engaging in such activity.

Section 2. Regulated Conduct

a. One year after passage of this Act, no Food Establishment in the Commonwealth of Massachusetts may use, sell, offer for sale, or otherwise distribute disposable food service ware made from black plastic.

b. One year after passage of this Act, no Retail Establishment in the Commonwealth of Massachusetts may sell, offer for sale, or otherwise distribute: 1. disposable food service ware made from black plastic. 2. meat trays, fish trays, seafood trays, vegetable trays, or egg cartons made in whole or in any part with black plastic.

Section 3. Exemption

a) Nothing in this chapter shall prohibit individuals from using disposable food service ware or other items made of black plastic purchased outside the Commonwealth of

Massachusetts for personal use. b) Prepared food packaged outside the Commonwealth of Massachusetts is exempt from the provisions of this chapter, provided that it is sold or otherwise provided to the consumer in the same disposable food service ware in which it was originally packaged, and that the prepared food has not been altered or repackaged. c) The Commonwealth of Massachusetts Department of Environmental Protection or the Board of Health of the city or town in which the food or retail establishment is located may exempt a food establishment or retail establishment from any provision of this chapter for a period of up to six months upon written application by the owner or operator of that establishment. No exemption will be granted unless the Department of Environmental Protection or the Board of Health finds that (1) strict enforcement of the provision for which the exemption is sought would cause undue hardship; or (2) the food establishment or retail establishment requires additional time in order to draw down an existing inventory of a specific item regulated by this chapter. For purposes of this chapter, “undue hardship” shall mean a situation unique to a food establishment or retail establishment in which there are no reasonable alternatives to the use of materials prohibited by this chapter, and that compliance with this chapter would create significant economic hardship for the Establishment.

Section 4. Enforcement

Health Agents of the cities and towns of the Commonwealth of Massachusetts shall also have the authority to enforce this chapter. This chapter may be enforced through any lawful means in law or in equity, including but not limited to, noncriminal disposition pursuant to G.L. c. 40 § 21D and Article VI of the General Bylaws. The town or city may enforce this chapter or enjoin violations thereof through any lawful process or combination of processes, and the

496 election of one remedy by the town or city shall not preclude enforcement through any other
497 lawful means.

498 Violations of this chapter are punishable by a fine of up to \$300 per violation. Each
499 successive day of noncompliance will count as a separate violation.

500 If non-criminal disposition is elected, then any Food or Retail Establishment that violates
501 any provision of this chapter shall be subject to the following penalties:

502 First Offense: written warning

503 Second Offense: \$50 penalty

504 Third and each subsequent offense: \$300 penalty

505 Section 5. Regulations

506 The Board of Health may adopt and amend rules and regulations to effectuate the
507 purposes of this chapter.

508 Section 6. Interaction with Other Laws

509 In the case of a conflict between the requirements of this chapter and any other federal,
510 state or local law concerning the materials regulated herein, the more stringent requirements shall
511 apply.

512 Section 7. Severability

513 If any provision of this chapter is declared invalid or unenforceable the other provisions
514 shall not be affected thereby.

SECTION 10. To Support Our Restaurants

Section 1. For purposes of this chapter, the following terms have the following definitions:

(a) “Disposable”, means designed to be discarded after a single or limited number of uses and not designed or manufactured for long-term multiple reuse.

(b) “Food service ware accessories”, include food service ware such as straws, stirrers, cup spill plugs, cup sleeves, condiments and condiment packets, utensils (including chopsticks), cocktail sticks/picks, toothpicks, napkins, and other similar accessory or accompanying food service ware used as part of food or beverage service or packaging. Detachable lids for beverage cups and food containers are not considered a food service ware accessory.

(c) “Food facility”, means an operation that stores, prepares, packages, serves, vends, or otherwise provides food to the public for human consumption.

(d) “Takeout food”, means prepared food requiring no further preparation, which is purchased to be consumed off a prepared food facility’s premises. Takeout food includes prepared food delivered by a food facility or by a third-party takeout food delivery service.

(e) “Takeout food delivery service”, is a service that delivers takeout food from a food facility to a customer for consumption off the premises. This service can be provided directly by the food facility or by a third party.

Section 2.

(a) No food facility shall provide any disposable food service ware accessories except:

1. Upon request by the consumer;

2. Upon acceptance by the consumer after being offered by the food facility; or

3. At a self-serve area and/or a dispenser.

(b) Food facilities shall only distribute disposable food service ware if they charge the customer what that food ware cost the food facility, or a dollar, whichever is greater.

(c) Takeout food delivery services that utilize digital ordering/point of sale platforms, including but not limited to the internet and smartphones, shall only offer disposable food service ware accessories by providing clear options for customers to affirmatively request these items separate from orders for food and beverages. The default option on the digital ordering/point of sale platforms shall be that no disposable food service ware accessories are requested. Each individual disposable food service ware accessory (e.g., each fork, knife, condiment packet, napkin, etc.) provided with prepared food must be specifically requested by the customer in order for a food facility to provide it.

(d) Takeout food delivery services shall only distribute disposable food service ware if they charge the customer what that food ware cost the food facility, or a dollar, whichever is greater.

SECTION 11. The General Laws are hereby amended by inserting after chapter 21O the following chapter:

CHAPTER 21P.

IMPROVED PLASTIC BOTTLES AND INCREASED RECYCLING

Section 1. Definitions. As used in this chapter, the following words shall have the following meanings unless the context clearly requires otherwise:

(a) “Beverage”, any of the following products prepared for immediate consumption and sold in a single-use container: beer and malt beverages; wine distilled spirit coolers; carbonated water and soda; noncarbonated water; carbonated soft drinks; noncarbonated soft drinks and ‘soft’ drinks; non-carbonated fruit drinks that contain any percentage of fruit juice and vegetable juice; coffee and tea drinks; carbonated fruit drinks; vegetable and fruit juice, sports drinks, fermented non-alcoholic drinks;

(b) “Beverage cap”, a cap on any plastic beverage container that is made wholly or in large part from plastic;

(c) “Plastic beverage container”, an individual, separate bottle, can, jar, carton, or other receptacle, however denominated, in which one liter or less of a beverage is sold, and that is constructed of plastic. “Beverage container” does not include a cup or other similar container open or loosely sealed receptacle;

(d) “The Department” means the Department of Environmental Protection for the Commonwealth of Massachusetts;

(e) “Plastic”, an organic or petroleum derivative synthetic or a semisynthetic organic solid that is moldable, and to which additives or other substances may have been added, with the exception of natural polymers that have not been chemically modified;

(f) “Product manufacturer” means any person, partnership, association, corporation or any other entity that, through its own action or through contract or control, is primarily

responsible for causing a product to be produced that is held inside of a rigid plastic packaging container and sold or offered for sale in Massachusetts.

i. The Department shall consider the following factors in identifying a product manufacturer: (1) the ownership of the brand name of the product in the beverage container; (2) primary control or influence over the design of the product in the beverage container; (3) primary control or influence over the design specifications of the beverage container;

ii. Any entity that has a legally recognized corporate relationship (i.e. parent/subsidiary or affiliate relationship) with a product manufacturer shall be allowed to assume the responsibilities of the product manufacturer as they relate to the requirements of this Act.

(h) “Retailer” means a person who sells a beverage in a beverage container to a consumer;

(i) “Single use”, means intended for disposal after one use and used for serving or transporting a prepared, ready-to-consume product, and is not intended for multiple trips or rotations by being returned to the producer for refill or reused for the same purpose for which it was conceived.

Section 2. Prohibition

(a) On and after January 1, 2024, a retailer shall not sell or offer for sale, in the state, a single-use beverage container with a beverage cap, unless the container meets one of the following conditions: (i) the beverage cap is tethered to the container in a manner that prevents the separation of the cap from the container when the cap is removed from the container; (ii) The

596 beverage cap includes an opening from which the beverage can be consumed while the cap is
597 screwed onto or otherwise contiguously affixed to the container;

598 (b) Metal caps or lids with plastic seals shall not be considered to be made from plastic.
599 Glass and metal beverage containers that have caps and lids made from plastic shall not be
600 included in this act;

601 SECTION 12. Requirements for the Removal of Toxic Substances in Beverage
602 Containers, Food Ware, and Food Ware Accessories

603 (1) Definitions:

604 (a) "Beverage container", means a prepackaged container designed to hold a beverage
605 that is made of any material, including glass, plastic, and metal, cartons, pouches, and aseptic
606 packaging.

607 (b) "Food ware accessories", include food serviceware such as straws, stirrers, cup spill
608 plugs, cup sleeves, condiments and condiment packets, utensils (including chopsticks), cocktail
609 sticks/picks, toothpicks, napkins, and other similar accessory or accompanying food service ware
610 used as part of food or beverage service or packaging.

611 (c) "Food ware". means any single use or reusable containers that food is served in or
612 sold in.

613 (d) "Food packaging" means any packaging that comes into direct contact with food that
614 will eventually be consumed by human beings or animals.

(2) Beginning two years after adoption of this bill, no person or entity may sell, offer for sale, or distributed into the state any beverage container, food ware accessories, food ware, or food packaging containing the following toxic substances:

(a) Ortho-phthalates, (b) Bisphenols, (c) Per- and polyfluoroalkyl substances (PFAS), (d) Lead and lead compounds, (e) Hexavalent chromium and compounds, (f) Cadmium and cadmium compounds, (g) Mercury and mercury compounds, (h) Benzophenone and its derivatives, (i) Halogenated flame retardants, (j) Perchlorate, (k) Formaldehyde, (l) Toluene, (m) Antimony and compounds, and (n) UV 328 (2-(2H-benzotriazol-2-yl)-4,6-di-tert-pentylphenol).

(3) Beginning two years after the Start Date, no person or entity shall sell, offer for sale, or distribute for use in this state any Beverage Container containing (a) polyvinyl chloride, (b) polystyrene, or (c) polycarbonate.

(4) Beginning three years after the start date, and every three years thereafter, the Department of Environmental Protection shall designate at least ten additional toxic substances or families of toxic substances that may no longer be used in Beverage Containers unless the Department of Environmental Protection determines there are not ten toxic substances of families of toxic substances that are required to be banned from use in beverage containers.

(5) Any producer that violates this section shall be subject to a fine for each violation not to exceed fifty thousand dollars per violation. For the purposes of this section, each product line that is sold, offered for sale, or distributed to consumers, via retail commerce, in the state, including through an internet transaction violation shall be considered a violation.

SECTION 13. The provisions of this bill shall take effect one year after passage unless otherwise specified.